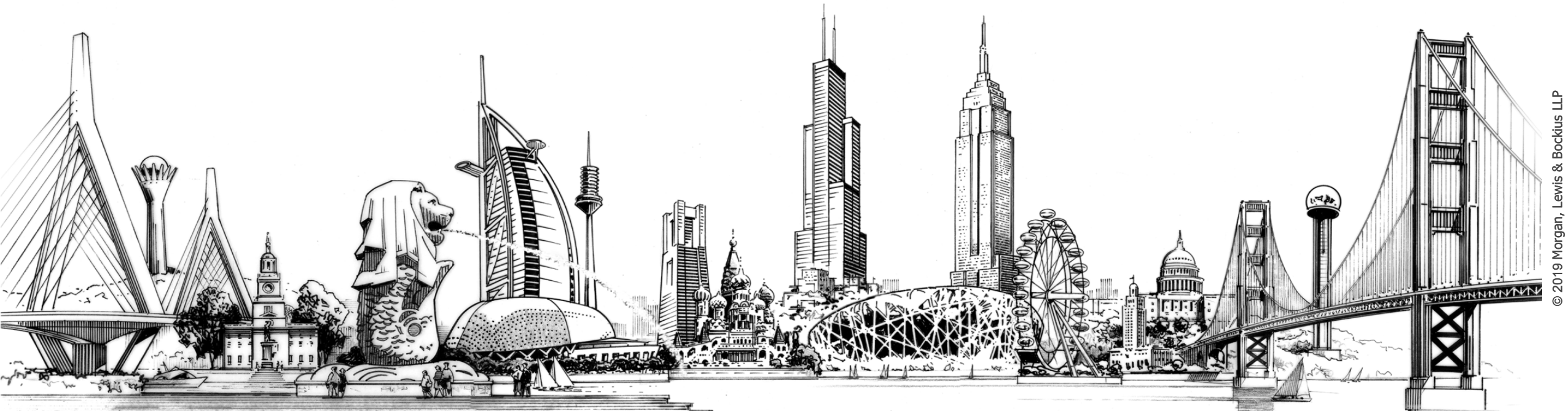


Morgan Lewis

A PRACTICAL APPROACH TO § 101

David V. Sanker, Ph.D.

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David V. Sanker, Ph.D.



David V. Sanker, Ph.D.

Silicon Valley

T +1.650.843.7260

david.sanker@morganlewis.com

1983 – 1989: Mathematics Ph.D. at UC Berkeley

1989 – 1992: Assistant Professor of Mathematics

1992 – 2004: Software Engineer

2004 – 2007: J.D. at UC Berkeley

2007 – 2017: IP Associate, Morgan Lewis

2017 – : IP Partner, Morgan Lewis

Presentation Outline

- **Policy, what policy?**
- **Yes, you can overcome § 101 rejections.**
- **What do you know about your Examiner?**
- **Strategies to increase success.**

Policy, what policy?

What are the policies behind these patent statutes?

§ 102 - novelty

§ 103 - obviousness

§ 112(a) – written description / enablement

§ 112(b) – “distinctly claiming”

§ 101 – utility

§ 101 – judicial exceptions

Policy, what policy?

- How about the Subject Matter Eligibility flowchart? Is the policy somehow embedded in Step 2A, prong one...?
- How about the many documents that intend to provide subject matter eligibility guidance...?
- How about the multitude of “examples”...? How many examples are there now?
- How about all of the Federal Circuit cases...?

Policy, what policy?

The Supreme Court in *Alice v. CLS Bank* explained the underlying policy in simple terms: “We have described the concern that drives this exclusionary principle as one of *pre-emption*.” 134 S. Ct. 2347, 2354 (2014).

Specifically, applying the §101 exception, we must distinguish between patents that claim the “buildin[g] block[s]” of human ingenuity and those that integrate the building blocks into something more, thereby “transform[ing]” them into a patent-eligible invention. The former “would risk disproportionately tying up the use of the underlying” ideas, and are therefore ineligible for patent protection. The latter pose no comparable risk of **pre-emption**, and therefore remain eligible for the monopoly granted under our patent laws. *Id.* at 2354, 2355 (internal citations omitted).

Policy, what policy?

Because Examiners are not (generally) applying the policy created and explained by the Supreme Court, there is substantial variation in § 101 rejections.

To address this inconsistent application of Section 101, it is important to (i) adapt to the particular Examiner assigned to an application and (ii) apply a multifaceted strategy to increase the probability of success.

Yes, you can overcome § 101 rejections

During the past six years, patent practitioners have still been able to get patents allowed, overcoming § 101 rejections.

It is more difficult to get patent applications allowed in certain subject matter areas (such as software), but strategic work can lead to success.

By learning what works, we can also prune the cases that are less likely to succeed (or not file them in the first place).

What do you know about your Examiner?

Because § 101 rejections depend on the Examiner assigned to your case, you should use tools to get information about your Examiner:

- Allowance Rate (absolute and compared to the art unit)
- Average Number of Office Actions
- Appeal Statistics
- Outcomes in other cases the Examiner has worked on, and what strategies worked

Strategies to increase success

1. Prepare for § 101 rejections while drafting a patent application
 - Identify technical problems and technical solutions to those technical problems.
 - Draft the application with substantial technical details.
 - The technical problem, technical solution, and technical details should come from the inventors.

Strategies to increase success

2. During prosecution, amend the claims to add more technical details.
 - This is not as trivial as it seems. As patent prosecutors, we have learned over many years how to draft patent claims at a high level of abstraction in order to get broad patent coverage for our clients. This is a valuable skill!
 - Here, we have to adapt our skill to identify ways in which to add technical details while maximizing the scope that is valuable to the client. If any plausible infringer would need to have a certain technical detail, then it is okay to include it in the claims.

Strategies to increase success

3. Use the appeal process

- If you are still fighting against § 101 rejections on a third or fourth office action, it is probably time for appeal.
- If an Examiner has a particularly low allowance rate, it may be time to appeal in response to the second office action.
- Before appealing, make sure you are ready:
 - Are the claims in good shape?
 - Are your arguments in good shape?

Strategies to increase success

4. Argue that the claims incorporate the alleged “abstract idea” into a practical application

- Make sure the Examiner has actually identified an alleged abstract idea. In many cases, Examiners are very sloppy here. For example, (i) “these claims are similar to others that courts have determined are directed to abstract ideas”, or (ii) arguing that each individual claim feature is directed to a different abstract idea.

Strategies to increase success

4. Argue that the claims incorporate the alleged “abstract idea” into a practical application

Claims are patent eligible if they “use the judicial exception in a manner that imposes a meaningful limit on the judicial exception, such that the claim is more than a drafting effort designed to monopolize the judicial exception.”

Real Example: The alleged abstract idea was “analyzing data.” The Examiner was unable to reject the claims under § 102 or § 103. If the Examiner could not even find any art on point, the claims certainly impose a meaningful limit on the alleged judicial exception.

Strategies to increase success

4. Argue that the claims incorporate the alleged “abstract idea” into a practical application

Once the Examiner specifies an alleged abstract idea, it establishes a universe of subject matter. If you can show that your claims cover a tiny portion of that universe (or 0.00 in the example above), then the claims impose a meaningful limit.

Note: this type of argument essentially captures the Supreme Court’s pre-emption policy, but not all Examiners accept it.

Strategies to increase success

5. Argue that the claimed subject matter cannot be performed in the human mind

Some court decisions have contrasted claims that sound more like business methods (not patent-eligible) versus claims that are rooted in technology (patent-eligible).

Even for Examiners who accept technology-based arguments, they typically require the technology to be core to the invention. For example, calling a server API function to retrieve a data set versus displaying data in a user interface.

Morgan Lewis

I am currently drafting an article on this subject, which will expound on the topics here and review some concrete examples that have led to allowance. If you would like a copy of the article when available, please email me.

david.sanker@morganlewis.com

